



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

August 14, 2023

Re: CCRB Case No. 202202293 (Incident Date: February 14, 2022) regarding Sergeant Robert Luckmann, Tax No. 945934 (DADS No. 2023-28568), and Police Officer James Drummy, Tax No. 941204 (DADS No. 2023-28567)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that no disciplinary action is warranted in connection with the allegations against Sergeant Luckmann and Police Officer Drummy. Furthermore, the CCRB lacks jurisdiction over matters pertaining to an alleged violation of Administrative Guide Procedure No. 304-15 (3). Specifically, the dissemination of information regarding the arrest history of individuals during an active police investigation does not fall under the category of Abuse of Authority.

New York City Charter Section 440 (c) (1) extends the Civilian Complaint Review Board's (CCRB) jurisdiction to investigate and prosecute allegations of misconduct that involves the allegations of Force, Abuse of Authority, Discourtesy, Offensive Language and Untruthful Statements. Further, as noted on their website, CCRB categorizes Abuse of Authority as vehicle searches, refusal to provide name and shield number, threatening to call ICE, forcible removal to the hospital, sexual misconduct, body worn camera issues, racial profiling and bias-based policing. Therefore, the Police Commissioner has determined that the allegations against Sergeant Luckmann and Police Officer Drummy involving the dissemination of an individual's arrest history are outside the purview of CCRB's authority to prosecute.

Despite the lack of jurisdiction by CCRB, the Police Commissioner independently considered the instant matter and concluded that Sergeant Luckmann and Police Officer Drummy's conduct was not in violation of Administrative Guide Procedure No. 304-15 (3). On February 14, 2022, Sergeant Luckmann and Police Officer Drummy responded to a multi-family dwelling where the situation involved a possible family dispute. The assignment later escalated

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Website: <http://nyc.gov/nypd>

into a police operation involving a barricaded male who occupied the second floor apartment. In order to determine the safest and most tactically-appropriate course of action to take, Sergeant Luckmann and Police Officer Drummy discussed the arrest histories of two tenants from the apartment involved. This conversation took place inside the first floor apartment as opposed to outside the location, as consideration was prudently given to the fact that the front second floor window was broken, and the adjacent area would have been unsafe. Presumably, the conversations were then within earshot of the other civilians inside the apartment. Despite this, Sergeant Luckmann and Police Officer Drummy did not intend to disclose this information to the civilians. As with most police operations, time is of the essence and the primary objective here was to gather information and employ the most appropriate action to safely extract the male occupant from the apartment.

Therefore, based on the foregoing, Sergeant Luckmann and Police Officer Drummy will receive no disciplinary action for the alleged violation of Administrative Guide Procedure 304-15 (3) (Department Confidentiality Policy/Disseminating Arrest History).

Sincerely,

A handwritten signature in black ink, appearing to read "A. Marino", is written over a horizontal line. The signature is stylized with a large, sweeping "A" and a clear "Marino".

Anthony Marino
Inspector
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

August 15, 2023

The Honorable Edward Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202202293 involving SGT Robert Luckman (Tax #945934, DADS #202328568) and PO James Drummy (Tax #941204, DADS #2023-28567)

Commissioner Caban:

I am writing in response to the letter from INS Anthony Marino, dated August 14, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to not serve Charges and Specifications and take no disciplinary action against PO Drummy, and, to take no disciplinary action against SGT Luckman. Pursuant to Paragraphs 2 and 6 of the April 2, 2012, Memorandum of Understanding (hereinafter referred to as the “MOU”) between CCRB and the New York City Police Department (hereinafter referred to as “NYPD”), I am responding to INS Marino’s letter.

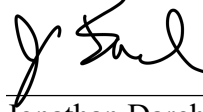
While the CCRB recognizes that the Police Commissioner is the final arbiter regarding disciplinary actions involving members of service, I want to bring two issues to your attention. First is that pursuant to the MOU, the CCRB is supposed to have an opportunity to respond in writing once informed of your intention to not follow a recommendation that a member of service receive Charges & Specifications. I understand more notice may have been impossible in this case, but I hope in the future that the CCRB will be afforded a true opportunity to be heard prior to a decision pursuant to Provision Two of the MOU.

The second is INS Martino’s assertion that the CCRB’s abuse of authority jurisdiction is limited to “vehicle searches, refusal to provide name and shield number, threatening to call ICE, forcible removal to the hospital, sexual misconduct, body worn camera issues, racial profiling and bias-based policing.” The CCRB’s rules define abuse of authority as “misusing police powers. This conduct includes, but is not limited to, bias-based policing and racial profiling, improper use of body worn cameras, improper searches, entries, seizures, property damage, refusals to provide identifying information, intentionally untruthful testimony and written statements made against members of the public in the performance of official police functions, and sexual misconduct.” The rules clearly state that the definition of abuse of authority “includes, but is not limited to” the types of conduct listed. The website states that the listed allegations are “examples.” Furthermore, the NYPD itself has disciplined members of service for abuse of authority allegations not listed in INS Martino’s letter.

The First Department held in Matter of Lynch v. New York City Civilian Complaint Review Board, 206 A.D.3d 558, 560 (1st Dept. 2022), that “given the CCRB’s expertise in studying and

investigating police disciplinary matters,” it defers to the CCRB’s interpretation of abuse of authority, “unless that definition is irrational, unreasonable, or inconsistent with the governing statute.” The NYPD should do the same.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'J. Darche', written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board

Cc: Stuart London, Esq.
John D’Alessandro, Esq.



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

August 17, 2023

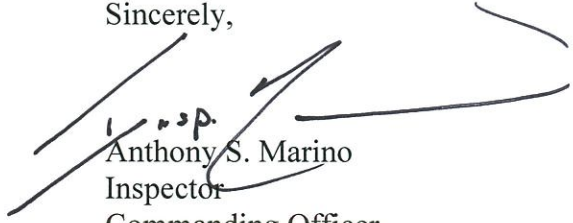
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Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated August 15, 2023, regarding the CCRB cases involving Police Officer James Drummy and Sergeant Robert Luckmann. Notwithstanding the arguments presented in your letter, the Police Commissioner affirms his decision that the alleged misconduct, involving the dissemination of information regarding two individuals' arrest histories, falls outside the purview of CCRB's jurisdiction to investigate and prosecute. Furthermore, the Police Commissioner has determined that the actions taken by both members of the service in response to this emergency police incident did not constitute misconduct.

Therefore, the Police Commissioner has directed that Police Officer Drummy and Sergeant Luckmann receive no disciplinary action in connection with this matter.

Sincerely,


Anthony S. Marino
Inspector
Commanding Officer
Police Commissioner's Office

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Website: <http://nyc.gov/nypd>